

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

CIVIL REVISION NO. 3718 OF 2018

In the matter of:

An application under Section 115(1) of the Code of Civil Procedure, 1908.

AND

In the matter of:

Binoy Krishno Sharma, son of late Balai Chandra Sharma alias Balaram Sharma of Village- Stapara, Post Office- Hazrahati, Upazila- Salikha, District- Magura, At present: Residing at Pashu Hospital Para, Magura Town, Post Code No. 7600, Upazila and District- Magura.

.... Petitioner

-Versus-

Md. Keramat Ali, son of late Ashraf Ali Munshi and others.

....Opposite-parties

Mr. Goutam Kumar Roy with
Ms. Anjuman Ara Begum, Advocates

... For the petitioner

Mr. Mohammad Shafiqul Islam, Advocate

....For the opposite-party no. 1

Heard on 23.10.2024 and 27.10.2024.

Judgment on 27.10.2024.

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Md. Bashir Ullah

Md. Mozibur Rahman Miah, J:

At the instance of the plaintiff in Testamentary Suit No. 02 of 2015, this rule was issued calling upon the opposite-party nos. 1-3 to show cause as to why the order no. 15 dated 25.07.2018 passed by the learned District Judge as well as District Delegate, Magura in the said suit adding the opposite-party nos. 1-3 as defendant nos. 3-5 to the suit on allowing application filed for addition of party should not be set aside and/or such other or further order or orders be passed as to this court may seem fit and proper.

At the time of issuance of the rule, all further proceeding of the said Testamentary Suit was stayed for a period of 6(six) months which was lastly extended on 03.04.2019 till disposal of the rule.

The salient facts so figured in the instant revisional application are:

The present petitioner as plaintiff filed the aforesaid suit seeking probate and letter of administration over the property described in the schedule of the plaint so left by the testators, Sree Rabindra Nath Sharma and Sree Shuvash Chandra Sharma. When the suit was being proceeded, the present opposite-party nos. 1-3 filed an application for adding them as party stating *inter alia* that, they got the property in R.S. Plot No. 256 as of successor of their father, Aftab Ali Munshi and they have been enjoying title and possession over the same which is subject matter of the property included in the Will. The said application was taken up for hearing by the learned District Judge, Magura and vide impugned order dated 25.07.2018 allowed the same adding the applicants as defendant

nos. 3-5. It is at that stage, the plaintiff filed the instant revision and obtained the rule and order of stay.

Mr. Goutam Kumar Roy along with Ms. Anjuman Ara Begum, the learned counsels appearing for the petitioner upon taking us to the impugned order at the very outset submits that, no reason has been assigned while allowing the application for addition of party is a non-speaking order.

The learned counsel in this regard has placed his reliance to the decision reported in 1981 BLD (AD) 218 and submits that, in a testamentary suit seeking probate and letter of administration, there has been no scope for a 3rd party to claim any property described in a Will until and unless, such claim is made through testators but in the instant case, admittedly no such claim has been made by the opposite-party nos. 1-3 in their application for addition of party and on that very sole ground, the learned counsel finally prays for making the rule absolute by setting aside the impugned order.

On the contrary, Mr. Mohammad Shafiqul Islam, the learned counsel appearing for the opposite-party no. 1 finds it difficult to refute the said legal assertion made by the learned counsel for the petitioner which has been settled by our Appellate Division in fortifying section 283 of the Succession Act, 1925 rather submits that, an observation can be made by this Hon'ble court so that the opposite-party nos. 1-3 can ventilate their grievance by filing appropriate application or instituting a suit since they got the said property as of successors.

We have considered the submission so placed by the learned counsel for the petitioner and that of the opposite-party no. 1.

On going through the impugned order, we find that, the order has been passed by the trial court in a slipshod and cursory manner without assigning any reason whatsoever while adding the opposite-party nos. 1-3 as defendant nos. 3-5. Furthermore, since it has already been settled by our Appellate Division reported in 1981 BLD 218 while interpreting section 283 of the Succession Act, 1925 that, in a suit for probate and letter of administration, no one can made party to contest the suit until and unless, they claim the property in the Will through testator. For the ready reference let us reproduce the proposition so held by our Appellate Division here:

“Probate proceeding– Addition of party–

Person not claiming interest in the property through the testator not entitled to be added as a party.

The “interest” in the estate of the testator within the words of section 283 means an interest through the testator. A person who claims outside or independently of the Will (sic) (Estate) of claims adversely to the testator and disputes his right to deal with the property cannot be deemed to claim any interest in the estate of the deceased. The crucial point in this case is whether the respondents claim any interest in the estate through the testator, and since they do not and cannot

do so, they got no locus standi to be added as a party to the probate proceeding.”

In the instant case, an application for addition of party has been filed claiming that they got the property from their father whose name R.S record was prepared. But as per section 283 of the Succession Act, there has been no scope to be added as party in a Testamentary Suit claiming land as co-sharer by inheritance or co-sharer by purchase other than, through the testator. So there has been no scope for the opposite-party nos. 1-3 to be added as defendants in a testamentary suit.

Insofar as regards to the submission placed by the learned counsel for the opposite-party no. 1 praying for giving the opposite-party nos. 1-3 avenue to assert their title but we don't find any substance in the said submission because if they are not entitled to be added any defendant in the suit then their position cannot be established in the instant suit which we are only adjudicating.

Be that as it may, it has already been found that, no reason has been assigned by the trial court in the impugned order for allowing the application vis-à-vis there has been explicit legal bar for the opposite-party nos. 1-3 to be added as a party in a testamentary suit who admittedly did not claim the property through the testator so for that obvious reason, the impugned order cannot sustain.

Resultantly, the rule is made absolute however without any order as to cost.

The impugned judgment and order dated 25.07.2018 passed by the learned District Judge, Magura in Testamentary Suit No. 02 of 2015 is

thus set aside resulting in, the name of the defendant nos. 3-5 are struck down from the plaint.

The order of stay granted at the time of issuance of the rule stands vacated.

Let a copy of the judgment be communicated to the court concerned forthwith.

Md. Bashir Ullah, J:

I agree.